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Case Number: 23PSCV00547 Hearing Date: July 15, 2026 Dept: 6

CASE

NAME: Eddie

Cason v. Motel 6 Pomona, CA – Los Angeles, et al.

Defendant

Pomona Hospitality, LLC's Motion to Deem the Truth of the Matters Specified in
Defendant's Requests for Admission, Set Two, and Request for Monetary Sanctions

TENTATIVE

RULING

The Court GRANTS Defendant Pomona Hospitality, LLC's Motion to
Deem the Truth of the Matters Specified in Defendant's Requests for Admission,
Set Two, and hereby deems the truth of the matters specified in
Requests for Admission, Set Two, admitted and conclusively established as to
Plaintiff.

The Court further GRANTS Pomona
Hospitality's request for monetary sanctions in the amount of \$816.00.
Plaintiff must pay said monetary sanctions to Pomona Hospitality's counsel
within 20 calendar days of this order.

Defendant Pomona Hospitality, LLC is
ordered to give notice of the Court's ruling within five calendar days of this
order.

BACKGROUND

This is a personal injury case. On February 27, 2023, plaintiff Eddie Cason (Plaintiff) filed this action against defendants Motel 6 Pomona, CA – Los Angeles, G6 Hospitality LLC, Motel 6 Operating L.P., Harald Bauer (collectively, Defendants) and Does 1 through 20, alleging causes of action for battery, negligence, intentional infliction of emotional distress, fraudulent concealment, private nuisance, public nuisance, and breach of contract. On December 18, 2024, Plaintiff filed a Doe amendment substituting Pomona Hospitality LLC (Pomona Hospitality) in place of Doe 1.

On June 3, 2026, Pomona Hospitality moved to deem the truth of the matters specified in its Requests for Admission, Set Two, and for monetary sanctions. Plaintiff did not oppose the motion.

LEGAL STANDARD

When a party fails to serve a timely response to a request for admission, the party propounding the request for admission may move for an order to deem the genuineness of any documents and the truth of any matters specified in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Id., § 2033.280, subd. (a).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Id., § 2033.280, subd. (c).)

DISCUSSION

Meet and Confer

Although meeting and conferring is not required before bringing motions to compel, this Court does require parties to meet and confer in person, by telephone, or by videoconference before bringing any motion. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404; Dept. 6 Courtroom Information, p. 2 of pdf.) Pomona

Hospitality does not indicate having met and conferred by any of these methods. (See Fox Decl., ¶¶ 2-10.) The Court admonishes Pomona Hospitality to comply with the Court's motion filing requirements going forward.

Analysis

Pomona

Hospitality indicates having served Requests for Admission, Set Two, on Plaintiff on January 16, 2026, and that despite having granted extensions, Plaintiff has not responded to these discovery requests. (Fox Decl., ¶¶ 2-10.) The Court finds Pomona Hospitality's motion well taken. Additionally, the Court construes Plaintiff's lack of opposition as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60

Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court therefore GRANTS the motion and hereby deems the truth of the matters specified in Requests for Admission, Set Two, admitted and conclusively established as to Plaintiff.

The Court further GRANTS Pomona

Hospitality's request for monetary sanctions in the amount of \$816.00, including 1.7 hours preparing the motion and 1.0 hour appearing at the hearing on the motion, multiplied by the hourly rate of \$280.00, plus the \$60.00 filing fee. Plaintiff must pay said monetary sanctions to Pomona Hospitality's counsel within 20 calendar days of this order.

CONCLUSION

The Court GRANTS Defendant Pomona Hospitality, LLC's Motion to Deem the Truth of the Matters Specified in Defendant's Requests for Admission, Set Two, and hereby deems the truth of the matters specified in Requests for Admission, Set Two, admitted and conclusively established as to Plaintiff.

The Court further GRANTS Pomona

Hospitality's request for monetary sanctions in the amount of \$816.00. Plaintiff must pay said monetary sanctions to Pomona Hospitality's counsel within 20 calendar days of this order.

Defendant Pomona Hospitality, LLC is

ordered to give notice of the Court's ruling within five calendar days of this order.